

IN THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA

RICHARD JEFFRIES

3158 Westdale Court
Waldorf, Maryland 20601

and

CHRISTINA SHEFFEY

2513 Fairhill Drive
Suitland, Maryland 20746

v.

CASE NO.
Desk Type: Civil General

UNITED STATES OF AMERICA

Serve: Matthew M. Graves, Esq.
United States Attorney for the District of
Columbia
555 4th Street, NW
Washington, DC 21001

and

UNITED STATES PARK POLICE

Serve: Pamela Smith
1100 Ohio Dr. SW,
Washington, DC 20242

and

MATTHEW PEREZ

1100 Ohio Dr SW,
Washington, DC 20242

Defendants.

COMPLAINT

TO THE HONORABLE, THE JUDGES OF SAID COURT:

Now comes, the Plaintiffs, Richard Jeffries and Christina Sheffey by and through their attorneys, V. Daniel Palumbo and Lawrence Wesker and hereby bring this action against the

Defendants and as reasons therefore states:

1. Jurisdiction over the United States of America, the United States Park Police and Matthew Perez is founded in 28 U.S.C. ss1346(b) (1994). Jurisdiction over Matthew Perez is also founded in 28 U.S.C. ss1332.

2. The Plaintiff Richard Jeffries (hereinafter “Jeffries”) is an adult citizen of the United States and resides in Charles County, Maryland. Plaintiff Christina Sheffey (hereinafter “Sheffey”) is an adult citizen of the United States and resides in Prince Georges County, Maryland.

3. The Defendant United States Park Police (hereinafter “Park Police”) at all times relevant herein was a federal agency and/or agent of the Defendant United States of America (hereinafter “United States”).

4. Defendant Matthew Perez (hereinafter “Perez”), at all relevant times herein, was an agent/servant/employee of the Park Police and/or the United States. Perez resides in the District of Columbia.

5. Timely notice of the Plaintiffs claims and/or their Claim for Damage, Injury or Death (Standard 95) Form was served on the United States/Unites States Park Police.

6. On or about March 24, 2019 Jeffries was operating a vehicle which carried passenger Sheffey. While they were travelling north on 2nd Street at its intersection with II Street in NW District of Columbia, the Plaintiffs’ vehicle entered that intersection with the advantage of a green light. At that time and place, a vehicle operated by Perez and owned by the United States and/or the Park Police was travelling west on II Street and entered the aforesaid intersection against a red light, causing his vehicle to collide with the Plaintiffs’ vehicle, resulting in the Plaintiffs’ injuries.

COUNT I –JEFFRIES

7. Jeffries adopts and incorporates paragraphs 1-6 as if set forth fully herein.

8. Perez owed a duty of ordinary care to Jeffries.

9. Perez breached his duty of ordinary care to Jeffries when he did not pay proper time and attention to traffic and/or traffic conditions, failed to maintain his vehicle in a safe manner, failed to operate his vehicle in a reasonable and safe manner by failing to maintain a safe distance between his vehicle and another vehicle on the roadway and by operating his vehicle in such a way as to cause it to enter an intersection against a red light, causing his vehicle to strike the Plaintiffs' vehicle.

10. Perez's breach of duty was the cause in fact and proximate cause of serious injuries sustained by Jeffries, including but not limited to injuries to his head, body and limbs. Some or all of these injuries may be permanent. Further, Perez's breach of duty was the cause in fact and proximate cause of medical bills, great mental and physical pain and suffering, lost wages and property damage bills incurred by Jeffries.

11. All of the injuries and damages sustained by Jeffries were caused in whole or in part by the negligence of Perez without any negligence on the part of Jeffries contributing thereto. Moreover, Jeffries did not assume the risk of harm.

12. The United States and/or the Park Police are/is liable for the negligence of their/its agent, employee and/or servant Perez, pursuant to the doctrine of respondeat superior. Similarly, the United States is liable for the negligence of its agent, employee and/or servant, the Park Police.

WHEREFORE, Plaintiff Richard Jeffries demands judgment against the Defendant United States of America, the Defendant the United States Park Police and the Defendant

Matthew Perez, jointly and severally in the amount of Forty-Two Thousand Dollars (\$42,000.00) plus costs and interest from the date of the judgment.

COUNT II - Sheffey

13. Sheffey adopts and incorporates paragraphs 1-6 as if set forth fully herein.

14. Perez owed a duty of ordinary care to Sheffey.

15. Perez breached his duty of ordinary care to Sheffey when he did not pay proper time and attention to traffic and/or traffic conditions, failed to maintain his vehicle in a safe manner, failed to operate his vehicle in a reasonable and safe manner by failing to maintain a safe distance between his vehicle and another vehicle on the roadway and by operating his vehicle in such a way as to cause it to enter an intersection against a red light, causing his vehicle to strike the Plaintiffs' vehicle.

16. Perez's breach of duty was the cause in fact and proximate cause of serious injuries sustained by Jeffries, including but not limited to injuries to her head, body and limbs. Some or all of these injuries may be permanent. Further, Perez's breach of duty was the cause in fact and proximate cause of medical bills, great mental and physical pain and suffering, lost wages and property damage bills incurred by Sheffey.

17. All of the injuries and damages sustained by Sheffey were caused in whole or in part by the negligence of Perez without any negligence on the part of Sheffey contributing thereto. Moreover, Sheffey did not assume the risk of harm.

18. The United State and/or Park Police are/is liable for the negligence of their/its agent, employee and/or servant Perez, pursuant to the doctrine of respondeat superior. Furthermore, the United States is liable for the negligence of its agent, employee and/or servant, the Park Police.

WHEREFORE, Plaintiff Christina Sheffey demands judgment against the Defendant United States of America, the Defendant the United States Park Police and the Defendant Matthew Perez, jointly and severally in the amount of Forty-Two Thousand Dollars (\$42,000.00) plus costs and interest from the date of the judgment.

Respectfully submitted,

/S/

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JURY PRAYER

Plaintiffs hereby request a jury trial.

Respectfully submitted,

/S/

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